Discuss and Possibly Adopt Revisions to Board Policy EFA (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy EFA Instructional Resources: Instructional Materials.

Explanation:
The Administration recommended revisions to Board Policy EFA Instructional Resources Instructional Materials. The Administration recommends that the updated Local Board Policy EFA be adopted as presented.

Policy Reference: EFA Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Note: For information related to the accounting of ~~i~~Instructional ~~m~~Materials, as this term is defined by state law and rule, see CMD.

For information related to the selection process of library materials, see EFB(LOCAL).

The District shall provide a wide range of ~~i~~Instructional ~~m~~Materials (as defined below) designed to teach the Texas Essential Knowledge and Skills, and further the District's educational mission, and be consistent with Board Policy CH (Local), EFB (Local), EMB (Local), and EMI (Local) and this Policy. ~~The Superintendent or designee shall ensure that professional staff select instructional materials in accordance with District policy and administrative procedures. The ultimate authority for determining and approving the curriculum and instructional program of the District lies with the Board.~~

Although the Superintendent may select Instructional Materials for their use in accordance with District policy and administrative regulations, the ultimate authority for determining and approving the curriculum and instructional program of the District lies with the Board.

Objectives

In this policy, "~~i~~Instructional ~~m~~Materials " may include, but is not limited to, textbooks, workbooks, supplementary resources for classroom use, a combination of book, workbook, and supplementary materials, including all media, writings, drawings, graphs, charts, photographs, pictures, film, videotapes, sound recordings, images, data, and data compilations of any kind, electronic resources, such as computer software, magnetic media, DVD, CD-ROM, computer courseware, online services, or an electronic media or other means of conveying information to students or otherwise contributing to the learning process through electronic means, that are ~~and any other instructional resources, including electronic resources,~~ used for formal or informal teaching and learning purposes. The primary objective of instructional materials is to implement, enrich, and support the District's educational program. 303

Protection from Inappropriate Material

Instructional ~~m~~Materials shall not include "harmful material" as defined by Penal Code 43.24(a)(2) or "obscene" material as defined by Penal Code 43.21(a)(1).

Selection

Instructional ~~m~~Materials that are textbooks and related supplemental materials, which may include items from the list of resources adopted by the State Board of Education, shall be chosen in accordance with administrative procedures and this policy.

The Board shall rely on the Superintendent to select and acquire ~~i~~Instructional ~~m~~Materials that:

1. Aligned with the Texas Essential Knowledge and Skills and are consistent with this Policy, Board Policy CH(Local), EFB(Local), EMB(Local), and EMI(Local).
2. Enrich and support the curriculum consistent with the general educational goals of the state and District, the aims and objectives of individual schools and specific courses, and the District and campus improvement plans.
3. Are appropriate for the subject area and for the age, ability level, learning styles, interests, and social and emotional development of the students for whom they are selected.
4. Meet high standards for artistic quality, literary style, authenticity, educational significance, factual content, physical format, presentation, readability, and technical quality.
5. Are designed to help students gain an awareness of our pluralistic society.
6. Are designed to provide information that will motivate students and staff to examine their own attitudes and behavior; to understand their duties, responsibilities, rights, and privileges as citizens participating in our society; and to make informed choices in their daily lives.
7. ~~Present various sides of controversial issues so that students have an opportunity to develop, under guidance, skills in critical analysis and in making informed judgments in their daily lives. [See also EMB regarding instruction about controversial topics.]~~
8. Promote literacy.
9. Balance cost with need.
10. Are designed to develop each student's civil knowledge, including:
    a. An understanding of:

i. The fundamental moral, political, and intellectual foundations of the American experiment in self-government;
ii. The history, qualities, traditions, and features of civic engagement in the United States;
iii. The structure, function, and processes of government institutions at the federal, state, and local levels; and
iv. The founding documents of the United States;

b. The ability to:
i. Analyze and determine the reliability of information sources;
ii. Formulate and articulate reasoned positions;
iii. Understand the manner in which local, state, and federal government works and operates through the use of simulations and models of governmental and democratic processes;
iv. Actively listen and engage in civil discourse, including discourse with those with different viewpoints; and
v. Participate as a citizen in a constitutional democracy by voting; and

c. An appreciation of:
i. The importance and responsibility of participating in civic life;
ii. A commitment to the United States and its form of government; and
iii. A commitment to free speech and civil discourse.

When selecting Instructional Materials or providing instruction regarding the founding documents of the United States, these shall be presented appropriately for the grade level and in supportive, comprehensive, and affirmatory manner that respects the entirety of the document. The founding documents of the United States include the entirety of the Declaration of Independence; the entirety of the United States Constitution; the Federalist Papers, including the entirety of Essays 10 and 51; excerpts from Alexis de Tocqueville's Democracy in America; the transcript of the first Lincoln-Douglas debate; the writings of the founding fathers of the United States; the entirety of Frederick Douglass's speeches "The Meaning of July Fourth for the Negro" and "What the Black Man Wants"; and the entirety of Martin Luther King Jr.'s speech "I Have a Dream."

District professional staff shall avoid classroom assignments which utilize ~~i~~Instructional ~~m~~Materials that teach prohibited concepts under the Texas Essential Knowledge and Skills and Board Policy CH (Local), EFB (Local), EMB (Local), EMI (Local), and this Policy. [See EMB]

Administrators, teachers, other District personnel, parents, and community members, as appropriate, may recommend ~~i~~Instructional ~~m~~Materials for selection. Gifts of instructional materials shall be evaluated according to these criteria and accepted or rejected in accordance with CDC(LOCAL).

Selection of ~~i~~Instructional ~~m~~Materials is an ongoing process that includes the removal of materials no longer appropriate and the periodic replacement or repair of materials that still have educational value.

Prior to Board approval or vote, the Superintendent shall certify to the Board that the instructional materials comply with this Policy.

The Superintendent shall develop policies and procedures to comply with this policy. The Superintendent shall certify to the Board that the District is in compliance with this policy by no later than February 1, 2026.

Rejected Instructional Materials

No course of instruction, unit of study, materials, Instructional Materials, or any other curricular or extracurricular offerings adopting, supporting, or promoting items on the list of rejected instructional materials maintained by the State Board of Education under Texas Education Code § 31.022(a) shall be used or introduced in any District school or otherwise.

For the avoidance of doubt, this prohibition will also include any such materials or Instructional Materials that a teacher or administrator might seek to provide to any student, including any situation in which a teacher or administrator would allow a student to "borrow" such materials or Instructional Materials from the teacher's or administrator's private collection.

Any materials or Instructional Materials adopting, supporting, or promoting on the list of rejected

instructional materials maintained by the State Board of Education under Texas Education Code § 31.022(a) shall be removed from any District premises generally accessible to the student population, including but not limited to any library or classroom setting.

Reconsideration of Instructional Materials

A parent or guardian of a District student, a student, an individual employee, or any District resident may request reconsideration of an ~~i~~Instructional ~~m~~Material used in the District's educational program on the basis that the ~~i~~Instructional ~~m~~Material fails to meet the standards set forth in this policy.

Guiding Principles

The following principles shall guide the Board and staff in responding to challenges of ~~i~~Instructional ~~m~~Materials:

1. A complainant may raise an objection to an ~~i~~Instructional ~~m~~Material used in a school's educational program, despite the fact that the professional staff selecting the materials were qualified to make the selection, followed the proper procedure, and adhered to the objectives for ~~i~~Instructional ~~m~~Materials set out in this policy.
2. A parent's ability to exercise control over instruction extends only to his or her own child as set forth in Education Code Chapter 26.
3. Access to a challenged material shall not be restricted during the reconsideration process, except the District shall ~~may~~ deny access to a student if requested by the student's parent.
4. No material should be removed for appropriateness by District personnel without reading the material in its entirety.

Informal Reconsideration

When the District or a campus receives requests to reconsider ~~an objection to the appropriateness of~~ an ~~i~~Instructional ~~m~~Material, the appropriate administrator shall try to resolve the matter informally. The administrator shall explain the selection process and discuss the intended educational purpose for the ~~i~~Instructional ~~m~~Material. If appropriate, the administrator may offer a concerned parent an alternative ~~i~~Instructional ~~m~~Material to be used by that parent's child in place of the requests to reconsider ~~challenged~~ ~~i~~Instructional ~~m~~Material.

If the complainant still wishes to make a formal challenge to the ~~i~~Instructional ~~m~~Material, the administrator shall provide the complainant a copy of this policy and a formal reconsideration form or direct the complainant to where the information is located on the District's website: Instructional Materials — Conroe ISD.

Formal Reconsideration

A complainant shall make any formal challenge to an ~~i~~Instructional ~~m~~Material in current use or that has been removed through ~~an informal~~ a formal reconsideration process by submitting a Reconsideration of Instructional Resource form available on the District's website: Instructional Materials — Conroe ISD. Upon receipt of the form, a reconsideration committee shall be assigned, and the Board shall be notified. Instructional ~~m~~Materials under formal review shall not be removed during the reconsideration process.

The reconsideration committee shall include:

- A non-voting committee moderator from the District;
- A campus administrator;
- A District-level professional staff member who is knowledgeable about the District's curriculum and instruction;
- A campus educator; and
- Four parents of currently enrolled students.

The District shall solicit parent committee members throughout the school year. Parent committee members will be randomly selected, and their names shall remain confidential to the extent permitted by law.

All members of the reconsideration committee shall review the challenged ~~i~~Instructional ~~m~~Material in its entirety for compliance with the Texas Essential Knowledge and Skills and compliance consistent with

Board Policy CH(Local), EFB(Local), EMB(Local), EMI(Local), and this Policy. As soon as reasonably possible, the committee shall meet and determine whether the challenged ~~i~~Instructional ~~m~~Material conforms to the principles of selection set out in this policy and whether the challenged ~~i~~Instructional ~~m~~Material shall continue to be used in the educational program.

At the reconsideration committee meeting, the complainant shall have 10 minutes to present to the committee and may provide supplemental information. The complainant shall exit the meeting after his or her presentation.

The decision of the reconsideration committee shall be by simple majority.

Absent extenuating circumstances, within 10 District business days of the reconsideration committee's meeting, the complainant shall be sent the committee's written report.

The Board, the Superintendent, and other appropriate administrators shall also receive a copy of the committee's report. The titles of ~~i~~Instructional ~~m~~Materials that have been formally challenged and the determination of the reconsideration committee shall be posted on the District's website: Instructional Materials — Conroe ISD.

Frequency of Review

After an ~~i~~Instructional ~~m~~Material has been reviewed through formal reconsideration, it shall not be reviewed again until it is evaluated in the periodic local selection process.

Appeal

The complainant may appeal the decision of the reconsideration committee in accordance with the appropriate ~~complaint~~ grievance policy, starting at Level Three. [See DGBA, FNG, and GF]

Gifts and Donations

Gifts of ~~i~~Instructional ~~m~~Materials shall be evaluated in accordance with the Texas Essential Knowledge and Skills and in accordance with this Policy, Board Policy ~~and~~ CDC(Local), CH(Local), EFB(Local), EMB(Local), and EMI(Local).

Superintendent Authority

The Superintendent shall develop policies and procedures to ensure compliance with this Policy. The Superintendent shall certify to the Board of Trustees that the District complies with this Policy not later than February, 1, 2026.